LARAH AMY SOPHIA LAUBSCHER
versus
MICHAEL HERCULES LAUBSCHER

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE 20 January, & 5 March 2026

Opposed Matter- Maintenance-Upward variation

N S Ndlovu with V W Vuma, for the Applicant
V W Gumiro, for the Respondent

MAXWELL J:

This is an application for upward variation of a maintenance award in terms of section 8(2) of the Maintenance Act [*Chapter 5:09*] and for arrears of maintenance in terms of section 11 of the Matrimonial Causes Act [*Chapter 5:13*]. At the hearing of this matter, counsel for the respondent raised a preliminary point that the first child had attained the age of majority. The court, having considered the submissions by both parties, delivered an ex-tempore ruling upholding the point *in limine*. The application for upward variation of maintenance in relation to the first child was struck out. The matter thereafter proceeded solely in respect of the minor child.

The applicant in her declaration averred that the parties were married in terms of the then Marriage Act [*Chapter 5:11*], now the Marriages Act [*Chapter 5:17*]. The applicant submitted that the marriage was subsequently dissolved through a divorce order of this Honourable Court. The applicant stated that she is the biological mother of the minor child, and the respondent is the biological father. The issues concerning custody and maintenance were addressed through a Consent Paper, which was made an order of this Court. She further averred that the respondent is legally responsible for maintaining the minor child, and, despite being able to contribute, has failed to provide reasonable maintenance.

She contended that the application for upward variation and arrear maintenance has merit and is in the best interest of the minor child. She averred that in terms of Clause 3 of the Consent Paper, the respondent was ordered to pay the sum of US $500.00 per month as maintenance for the two children. Both parties were to contribute equally to the school fees of

the younger child as well as the desk fee. The respondent was to further provide medical aid cover. She further stated that both parties were to jointly contribute towards buying the minor child's casual clothes and uniforms. The applicant alleged that she was unduly influenced to agree to the terms of the Consent Paper since she was a self-actor. She further averred that she was advised by the respondent's counsel to consent to the terms to expedite the divorce proceedings. The applicant averred that, she is applying for upward variation of maintenance from the sum of US$500.00 per month to the sum of US$ 2517.00 per month. She stated that she has approached this court for upward variation of maintenance for the minor child based on changed circumstances and she also seeks payment of arrear maintenance.

The respondent opposed the application. He stated that he has been maintaining the child as per the maintenance order. He further averred that the applicant has not established the basis for the variation being sought. He denied ever unduly influencing the applicant to agree to anything that she was not comfortable with. The respondent maintained that the applicant participated in settlement discussions with full capacity and consented freely and voluntarily. He stated that the applicant was not only a housewife, as she does accounting for her father. The respondent further stated that the Consent Paper is a clear indication of what was agreed to, and no other issues were agreed on as alleged by the applicant.

The respondent contended that he cannot afford the amounts being claimed by the applicant. He stated that there are no changed circumstances on his earning capacity. He alleged that his financial situation has changed for the worse. He mentioned that between 2016 and 2023, at the time of divorce, he was employed as a mine manager, earning the sum of US $1 800.00 per month, and he was based in Chegutu. He was staying at a company house, hence not paying rentals. He pointed out that currently he is not employed, and he usually gets part-time assignments where he earns about US $ 1 000.00 per month.

He stated that from the US$ 1 000. 00 he earns he is paying maintenance for US$ 720.00, leaving him with US $ 280.00 for his personal upkeep. He averred that he cannot afford what is being claimed by the applicant. The respondent alleged that he was never consulted when the child was enrolled at an expensive school. He pointed out that the receipts attached by the applicant do not prove anything as claimed. He stated that he was the one who paid for the medical aid policy of the child, and the applicant decided to change to another expensive policy of her choice, which was not agreed to. He averred that he buys clothes for the child and the child should not be exposed to a lifestyle that cannot be afforded

by the parents. The respondent denied ever breaching the maintenance order despite the downward change in his personal circumstances. He alleged that no changed circumstances are warranting the order sought by the applicant.

The applicant filed her answering affidavit on 10 April 2025. The applicant maintained that she had established the basis for variation. She stated that there are changed circumstances which include change in the income earning capacity and financial resources of the parties, change in the financial needs, obligations and responsibilities which each spouse and child has or is likely to have in the future, the standard of living of the family including the manner in which the child is being expected to be educated and the ability of the respondent to pay the amount sought.

She further averred that the conditions at the time the order was made had changed and that it would be unfair to leave the order in its original form. It was the applicant's submission that it is in the best interest of the minor child that the maintenance order be varied. She stated that the respondent is renting in his former employer's house, paying rent in the sum of US $400. She denied ever receiving an average amount of US $720.00 as maintenance per month from the respondent. The applicant admitted to being employed part-time on a salary of US $500 per month. She alleged that the respondent earns in the range of US $8 000.00. The applicant persisted with her claim.

ANALYSIS

Section 8(2) of the Maintenance Act [*Chapter 5:09*] empowers the court to vary a maintenance order upon proof of changed circumstances. The applicant bears the onus to demonstrate such a change.

In the case of *Fleming* v *Flemming* HH-27-2003 it was held that;

> " On the applicant therefore rests the onus to establish good cause to justify a variation of the maintenance granted by the court at divorce…. In order for a court to grant a variation, there must have been a change in the conditions that existed when the order was made, that it would be unfair that the order should stand in its original form"

In *Mackintosh (nee Parkison) v Mackintosh* HH394-2016 the court held that:

> 'Clearly what is critical to variation of an order is good cause. In *Henning* v *Henning* HH27/2003, Gowora J aptly outlined what amounts to good cause and also laid down factors for consideration for one to determine good cause. The judge further made it clear that the onus is on the applicant to show change in circumstances amounting to good cause. In order for a court to grant variation of a maintenance order, there must

> have been a change in the conditions that existed when the order was made. Any change in the means/income, needs or obligations of one of the ex-spouses may be sufficient reason for obtaining variation of the earlier order.'"

The applicant argued that the financial needs of the minor child have increased, that the respondent's financial resources have improved, and that the family's standard of living requires adjustment. She claimed undue influence in consenting to the original terms and insists that the respondent earns significantly more than he reports. Conversely, the respondent claimed his financial situation has worsened. He stated that at the time of the divorce, he earned US$ 1,800 as a mine manager with housing provided, but now earns approximately US$ 1,000 from part-time work. He pays US $720.00 in support and has only US $280 left for his personal expenses. The respondent also disputed the applicant's claim of higher earnings and denied owing any arrears.

The court noted that the applicant has not provided cogent evidence of the respondent's alleged earnings of US $8 000.00. The receipts attached do not substantiate the claim of arrears. No evidence controverted the respondent's submission of reduced income. The court observed that the Consent Paper was freely entered and filed as a court order. Allegations of undue influence are unsubstantiated. The applicant confirmed her part-time employment at US $500.00 per month, which enables her to contribute to the welfare of the child according to her means. On the needs of the child, it was not demonstrated that the conditions that existed at the time of the order had changed as at the time of making the application.

In the case of *Kasu* v *Kasu* HH 106/18, the law on maintenance was aptly set out as follows:

> "On maintenance payable for the children, the needs of the children have to be balanced against the means of the person responsible for payment of maintenance. It is however the obligation of both parents to maintain their children each according to their means and at the same time trying to ensure that the children enjoy the quality of life they were accustomed to before the divorce."

While the needs of the minor child are paramount, maintenance must be commensurate with the means of the parties. The principle is that a child should not be exposed to a lifestyle beyond the parent's capacity. It has not been demonstrated that the respondent's current financial position permits the upward variation sought. The applicant has not shown good cause. Allegations of the respondent's higher earnings are not supported. The respondent's submission of reduced income is probable as it was not disputed that he is

no longer working as a mine manager. Good cause requires more than mere dissatisfaction with the existing order. It requires proof of a material change in circumstances. The argument by the Applicant that she was unduly influenced to sign the Consent Paper is indicative of the fact that the basis of her approaching the court is not genuinely a change in circumstances but rather an attempt to review the terms agreed upon on the basis that she was not represented when she signed the Consent Paper. The fact that she is now represented is not the change in circumstance that justifies the upward variation of terms that were agreed to and signed for willingly.

It is noted that the monetary grant of US $500.00 was initially awarded for the sustenance and welfare of two minor children. The Consent Paper provided as follows;

> "3. Plaintiff shall pay maintenance for the two children in the sum of US$500.00 (five hundred United States Dollars) per month until the children become self-supporting. The amount for maintenance shall be distributed as follows:
>
> a. USS200 (Two Hundred United States Dollars) for accommodation
>
> b. US$150 (One Hundred and Fifty United States Dollars) towards the upkeep of Tye Lee Laubscher, born 5th December 2007
>
> c. USS150 (One Hundred and Fifty Dollars) towards the upkeep of Sophia Laubscher born 1ª March 2012 provided that this amount shall not be payable until such a time the Defendant assumes custody of the miner child Sophia Laubscher."

The allocation was clear that $150 was for the child who has since attained majority status. The order is therefore no longer applicable to him. The Respondent 's obligation in relation to the remaining minor child remains. Respondent has not asked for a reduction of the amount he was ordered to pay as maintenance for the two children despite pointing out that one is now a major. It is my view that it is in the best interest of the minor child that he continues to pay US $500.00 as maintenance for the minor child.

The applicant has failed to establish changed circumstances warranting upward variation of the maintenance order. The claim for arrears is similarly unsupported by evidence. The court finds that the respondent produced proof of payments showing that he has substantially complied with the existing order. The application lacks merit and cannot succeed.

Accordingly, it is ordered as follows;

1. The application for upward variation of maintenance is dismissed.
2. The respondent be and is hereby ordered to continue paying maintenance in the sum of US $500.00 per month for the minor child.
3. The claim for arrear maintenance is dismissed
4. Each party shall bear its own costs.

Nembo Attorneys, Applicant's Legal Practitioners
Moyo Chikono & Gumiro, Respondent's Legal Practitioners